

		Complaint is 363 pages long and Defendant used 5 pages more to make arguments in support of its anti-SLAPP, the extra pages are understandable. While the Court admonishes Defendant for its violation of the California Rules of Court, the Court will allow Plaintiff to file an Amended Opposition not to exceed 20 pages in the interest of justice and fairness. Defendant may file an Amended Reply memorandum not exceed 10 pages. The deadlines for these amended filings are per Code. Based on the foregoing, the Court CONTINUES Defendant Cheryl Lynn Walsh's Motion to Strike Complaint to November 20, 2023, at 1:45 p.m. in Department C15. On the court's own motion, the status conference set for November 20, 2023, at 8:30 am is continued to November 20, 2023, at 1:45 pm in C15. Defendant Walsh to give notice.
2	Gregg vs Nelson 2021-01196389	Motion to Abate Action, or in the Alternative Dismiss Action Defendants The Regents of the University of California and Ariana Nelson, M.D.'s Motion to Abate is DENIED. The case is STAYED. The hearing on this motion was continued from 8-7-23. Plaintiff is believed to have passed away on or about 12-27-22. Plaintiff was an attorney and representing himself in this action. Defendants previously served the instant motion by e-service on Plaintiff's law firm's email address, knowing he was deceased. Accordingly, Defendants were ordered to re-serve

		the motion at Plaintiff's law firm address and his last known home address by certified mail. Defendant's counsel Steven Wysocky submitted his declaration regarding attempts to locate the successor in interest to Plaintiff Hugh Greg. (ROA 115). Those attempts included phone calls to numbers listed for Mr. Gregg, as well as property record searches, emails, and regular mailings. Mr. Gregg's listed address was sold after his death. Phone numbers have been disconnected. Mr. Wysocky has also attempted contact with the attorneys at Mr. Gregg's shared office space, but they could not provide any information relative to a successor in interest. Pursuant to <i>Code of Civil Procedure</i> § 377.21, a pending action or proceeding does not abate with the death of a party if the cause of action survives. Here, Defendants admit Plaintiff's cause of action survives the death of Plaintiff. However, Plaintiff's heirs must take certain procedural steps to continue with the action and they have failed to do so. A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest. <i>Code Civ. Proc.</i> § 377.30. "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." <i>Code Civ. Proc.</i> § 377.31. The procedures the decedent's successor in interest must take are set forth in <i>Code of Civil Procedure</i> § 377.31. Because Plaintiff's heirs have not yet applied to the Court to continue this action, the action is stayed to allow Plaintiff's heirs the time to either proceed with this action or dismiss it.
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		Moving party to give notice. Status Conference The court schedules this matter for a status conference on 6-24-2024, at 8:30 AM, in C15. Regents to give notice.
3	Hunter vs Ayres Self Storage, LTD. 2023-01326116	Demurrer to Complaint Defendants, Ayres Self Storage, LTD, Bruce Ayres, Ayres Self Storage Costa Mesa, LLC, Ayres Self Storage Montclair, LLC’s (Defendants) Demurrers to the First Cause of Action for Violation of Business and Professions Code 21700 et seq and the Second Cause of Action for Violation of Business and Professions Code 17200 et seq to the Complaint are SUSTAINED in part and OVERRULED in part. Defendants’ Notice states Defendants demur only to the first cause of action for violation of the California Self-Service Storage Act (Act) and second cause of action for violation of the Unfair Competition Law (Demurrer, 1:26-2:11), while the memorandum of points and authorities argues all four causes of action are insufficiently pled. The notice of motion must state in the first paragraph exactly what relief is sought and the grounds on which the relief is sought. <i>Code of Civil Procedure</i> § 1010; <i>California Rule of Court</i>, rule 3.1110(a); <i>People v. American Surplus Insurance Co.</i> (1999) 75 Cal.App.4th 719, 726. Generally, the court cannot grant different relief, or relief on different grounds, than stated in the notice of motion. <i>American Surplus Insurance, Id.</i> at 726; <i>Luri v. Greenwald</i> (2003)